

24STCV28848 24STCV28848

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C06%2F26%2F2026

Source SHA-256: 95b9b0d0194d0fcb2cf939e1bb38dc0e3064fb5076b5f67305df7be1a7d4be0f

Case Number: 24STCV28848 Hearing Date: June 26, 2026 Dept: 529

LINDA FOK VS CHICKEN NOW MONTEBELLO, LLC, ET AL.

DEMURRER

WITH MOTION TO STRIKE

Date

of Hearing: June 26, 2026 Trial Date: None

set

Department: 529 Case No.: 24STCV28848

Moving

Party: Defendant Professional

Security Consultants

Responding

Party: No opposition

Meet

and Confer: Yes. Jensen Decl.

BACKGROUND

On November 4, 2024, Plaintiff Linda Fok filed a complaint against Defendants Chicken Now Montebello, LLC dba Chicken Now, Tammy Lee, and Spinoso Real Estate Group DLS, LLC for intentional infliction of emotional distress, negligence, violation of Unruh Civil Rights Act (Civ. Code §§51, 52), negligent violation of statutory duty, premises

liability and false imprisonment.

On October 15, 2025, Plaintiff dismissed Defendant Tammy Lee. Plaintiff also dismissed Defendant Spinoso Real Estate Group DLS, LLC on December 22, 2025.

Plaintiff named Bridge Group Investments II LLC as Doe 4, Professional Security Consultants as Doe 3, and Centennial Real Estate Management, LLC as Doe 2.

[TENTATIVE]

RULING

Defendant Professional Security Consultants' Demurrer to the Complaint is SUSTAINED WITH LEAVE TO AMEND; Defendant Professional Security Consultants' Motion to Strike is GRANTED.

DISCUSSION

Defendant Professional Security Consultants ("PSC") demur to the complaint on the grounds the complaint fails to state facts sufficient to constitute a cause of action and are fatally uncertain.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Defendant argues the pleading fails to state facts sufficient to constitute any cause of action against Defendant because the complaint alleges only conclusory detention-related assertions without identifying any PSC policy, act, omission, or employee conduct tying PSC to the alleged discrimination, negligence, premises conditions, or intentional misconduct. Moreover, the causes of action are fatally uncertain as to PSC because the Complaint lumps "All Defendants" together, does not distinguish between the restaurant, the mall operator, and security contractors, and fails to specify who did what, when, or under what authority with respect to PSC. Moreover, the sixth cause of action for false imprisonment is time-barred.

The court agrees Plaintiff has failed to allege facts sufficient to constitute a claim for intentional infliction of emotional distress, negligence, violation of Unruh Civil Rights Act, negligent violation of statutory duty, premises liability and false imprisonment against PCS. The complaint generally alleges the mall security personnel, acting within the course and scope of their employment then took Plaintiff to the mall security office where they detained her and subjected her to approximately three hours of custodial interrogation and during this detention, forced Plaintiff to write a statement prolonging her ordeal. (Compl. ¶¶25-26.) The complaint also alleges Defendants failed to properly screen security personnel, train security personnel and supervise security personnel. (Compl. ¶37.) These allegations do not connect PSC to the alleged misconduct; show how PSC breached any duty owed or caused harm to Plaintiff; show how PSC acted with discriminatory animus, adopted the restaurant's alleged animus, or applied a discriminatory policy; and does not identify any physical condition causing injury. As for the false imprisonment claim, the court agrees the statute of limitations has run. The statute of limitations for false imprisonment is one year, which accrues upon release from confinement. (See CCP § 340(c); Scannell v. County of Riverside (1984) 152 Cal.App.3d 596, 606.) Plaintiff alleges that mall security personnel escorted her to the mall security office, and detained her, on April 23, 2023. (Compl., ¶ 15) The complaint in this case was filed November 4, 2024, more than one year later.

Based on the foregoing, the demurrer is SUSTAINED as to the first – fifth causes of action with leave to amend and without leave to amend as to the sixth cause of action.

Motion to Strike

Defendant PSC moves to strike Paragraph 34 and Paragraph 3 of the Prayer for punitive damages on the grounds that the punitive damages allegations against PSC are conclusory, lack specific ultimate facts showing oppression, fraud, or malice by PSC or any officer, director or managing agent involvement, authorization or ratification by PSC.

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (CCP § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Defendant PSC argues the complaint pleads only conclusory punitive buzzwords with no supporting ultimate facts against PSC and does not allege conscious disregard, authorization, or ratification on the part of an officer, director, or managing agent of the corporation. The court agrees the complaint has not alleged facts sufficient to support a claim for punitive damages against PSC.

Based on the foregoing, the motion to strike is GRANTED WITH LEAVE TO AMEND.